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**U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:15-cv-02930-KPF**

Garnett v. The City of New York et al

Date Filed: Apr 15, 2015
Status: Closed
Nature of suit: 440 Civil Rights: Other
Assigned to: Judge Katherine Polk Failla
Cause: 42:1983 Prisoner Civil Rights
Date terminated: Feb 18, 2016
Jurisdiction: Federal Question
Jury demand: Defendant

Parties and Attorneys

Plaintiff

Najee Garnett

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Defendant

The City of New York
(the names John and Jane Doe being fictitious, as the true names are presently unknown)

Defendant

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Defendant

John/Jane Does Nos. 1-10

Docket Entries

Reverse Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Action	Description
1	Apr 15, 2015	View	COMPLAINT against Michael Cintron, Karlina Cortes, John/Jane Does Nos. 1-10, Julio Meyreles, Norman Ortega, Christopher Reilly, Luis Sanchez, Gaspar Sciacca, The City

			of New York. (Filing Fee \$ 350.00, Receipt Number 465401122839) Document filed by Najee Garnett. (rdz) (Entered: 04/16/2015)
	Apr 15, 2015		SUMMONS ISSUED as to Michael Cintron, Karlina Cortes, John/Jane Does Nos. 1-10, Julio Meyreles, Norman Ortega, Christopher Reilly, Luis Sanchez, Gaspar Sciacca, The City of New York. (rdz) (Entered: 04/16/2015)
	Apr 15, 2015		Magistrate Judge Sarah Netburn is so designated. (rdz) (Entered: 04/16/2015)
	Apr 15, 2015		Case Designated ECF. (rdz) (Entered: 04/16/2015)
2	Apr 15, 2015	Request	CIVIL COVER SHEET filed. (rdz) (rdz). (Entered: 04/16/2015)
3	Apr 16, 2015	Request	ORDER: This case is hereby designated for participation in the Southern District of New York's Plan for Certain Section 1983 Cases against The City of New York (the "Section 1983 Plan"), which is available for review at the Court's website, www.nysd.uscourts.gov . (Signed by Judge Katherine Polk Failla on 4/16/2015) (tn) (Entered: 04/16/2015)
	Apr 16, 2015		Transmission to Mediation Clerk. Transmitted re: 3 Order, to the Mediation Clerk for case processing. (tn) (Entered: 04/16/2015)
	Apr 16, 2015		NOTICE OF PARTICIPATION IN LOCAL CIVIL RULE 83.10 (FORMERLY THE SECTION 1983 PLAN): Unless otherwise ordered, this case shall participate in the Southern District of New York's Local Civil Rule 83.10. Please reference the Court's website, www.nysd.uscourts.gov , to review Local Civil Rule 83.10, updated 4/1/2015, for important information. (rpr) (Entered: 04/17/2015)
4	Apr 21, 2015	Request	AFFIDAVIT OF SERVICE. The City of New York served on 4/21/2015, answer due 5/12/2015. Service was accepted by Betty Mazyck, docketing clerk. Document filed by Najee Garnett. (Perry, Robert) (Entered: 04/21/2015)
5	May 1, 2015	Request	AFFIDAVIT OF SERVICE. Michael Cintron served on 4/24/2015, answer due 5/15/2015. Service was accepted by V. Richardson, Co-Worker. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/01/2015)
6	May 1, 2015	Request	AFFIDAVIT OF SERVICE. Karlina Cortes served on 4/24/2015, answer due 5/15/2015. Service was accepted by V. Richardson, Co-Worker. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/01/2015)
7	May 1, 2015	Request	AFFIDAVIT OF SERVICE. Julio Meyreles served on 4/24/2015, answer due 5/15/2015. Service was accepted by V. Richardson, Co-Worker. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/01/2015)

8	May 1, 2015	Request	AFFIDAVIT OF SERVICE. Norman Ortega served on 4/24/2015, answer due 5/15/2015. Service was accepted by V. Richardson, Co-Worker. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/01/2015)
9	May 2, 2015	Request	AFFIDAVIT OF SERVICE. Christopher Reilly served on 4/24/2015, answer due 5/15/2015. Service was accepted by "Jane" Richardson, Co-Worker. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/02/2015)
10	May 2, 2015	Request	AFFIDAVIT OF SERVICE. Luis Sanchez served on 4/27/2015, answer due 5/18/2015. Service was accepted by "Jane" Mumford, SPAA. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/02/2015)
11	May 4, 2015	Request	NOTICE OF APPEARANCE by Joshua Mathew Friedman on behalf of The City of New York. (Friedman, Joshua) (Entered: 05/04/2015)
12	May 16, 2015	Request	AFFIDAVIT OF SERVICE. Gaspar Sciacca served on 5/12/2015, answer due 6/2/2015. Service was accepted by "John" Bostic, Detective. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 05/16/2015)
13	June 22, 2015	Request	ANSWER to 1 Complaint, with JURY DEMAND. Document filed by Michael Cintron, Karlina Cortes, Julio Meyreles, Norman Ortega, Christopher Reilly, Luis Sanchez, Gaspar Sciacca, The City of New York.(Friedman, Joshua) (Entered: 06/22/2015)
	June 22, 2015		LOCAL CIVIL RULE 83.10 (FORMERLY THE SECTION 1983 PLAN) 100-DAY REVIEW: The mediator shall be available to the parties throughout the discovery phase of the Rule and shall schedule and hold the first mediation session in the case within ten (10) days of the close of the discovery period. In the event that the mediation cannot begin within the time set forth herein, the assigned mediator shall promptly notify the Mediation Supervisor of the date by which the mediation will begin and the reason for the delay. The mediator shall correspond with the Mediation Office to arrange a mutually convenient date and time to hold the first session. 1983-Plan Review due by 9/30/2015. Mediator to be Assigned by 7/2/2015.(rpr) (Entered: 06/24/2015)
	June 22, 2015		NOTICE OF SELECTION FOR MEDIATION: This case has been selected for participation in the Southern District of New York's mediation program.(rpr) (Entered: 06/24/2015)
	June 24, 2015		NOTICE OF MEDIATOR ASSIGNMENT - Notice of assignment of mediator.(cda) (Entered: 06/24/2015)
14	July 7, 2015	Request	NOTICE OF INITIAL PRETRIAL CONFERENCE: Initial Conference set for 10/8/2015 at 03:30 PM in Courtroom

			618, 40 Centre Street, New York, NY 10007 before Judge Katherine Polk Failla, and as further set forth in this order. (Signed by Judge Katherine Polk Failla on 7/7/2015) (tn) (Entered: 07/07/2015)
15	Aug 9, 2015	Request	AFFIDAVIT OF SERVICE of Notice of Initial Pretrial Conference and Court's Individual Rules served on Joshua M. Friedman, Esq. on 08/09/2015. Service was made by Mail. Document filed by Najee Garnett. (Perry, Robert) (Entered: 08/09/2015)
	Aug 25, 2015		MEDIATOR SESSION SCHEDULED First Mediation Session scheduled for September 11, 2015 at 10:00 AM. Session to take place at the Office of the Mediator.(cda) (Entered: 08/25/2015)
	Sept 15, 2015		Mediator Session Held on 09/11/2015 at Mediator's Office.(ms) (Entered: 09/15/2015)
17	Oct 1, 2015	Request	RULE 26(f) DISCOVERY PLAN REPORT.Document filed by Michael Cintron, Karlina Cortes, Julio Meyreles, Norman Ortega, Christopher Reilly, Luis Sanchez, Gaspar Sciacca, The City of New York.(Friedman, Joshua) (Entered: 10/01/2015)
18	Oct 9, 2015	Request	CIVIL CASE MANAGEMENT PLAN AND SCHEDULING ORDER: All parties do not consent to conducting all further proceedings before a United States Magistrate Judge, including motions and trial. 28 U.S.C. 636(c). This case is to be tried to a jury. Counsel for the parties have conferred and the present best estimate of the length of trial is 5 days. Deposition due by 3/21/2016. Fact Discovery due by 2/5/2016. Expert Discovery due by 3/21/2016. Pretrial Conference set for 2/19/2016 at 02:30 PM in Courtroom 618, 40 Centre Street, New York, NY 10007 before Judge Katherine Polk Failla. (Signed by Judge Katherine Polk Failla on 10/9/2015) (lmb) Modified on 10/16/2015 (lmb). (Entered: 10/13/2015)
19	Feb 19, 2016	View	ORDER OF DISCONTINUANCE: that this action be conditionally discontinued without prejudice and without costs; provided, however, that within thirty (30) days of the date of this Order, the parties may submit to the Court their own Stipulation of Settlement and Dismissal for the Court to So Order. Otherwise, within such time Plaintiff may apply by letter for restoration of the action to the active calendar of this Court in the event that the settlement is not consummated. Upon such application for reinstatement, the parties shall continue to be subject to the Court's jurisdiction, the Court shall promptly reinstate the action to its active docket, and the parties shall be directed to appear before the Court, without the necessity of additional process, on a date within ten (10) days of the application, to schedule remaining pretrial proceedings and/or dispositive motions,

as appropriate. This Order shall be deemed a final discontinuance of the action with prejudice in the event that Plaintiff has not requested restoration of the case to the active calendar within such 30-day period. The Clerk of Court is directed to terminate all pending motions, adjourn all remaining dates, and close this case. (Signed by Judge Katherine Polk Failla on 2/18/2016) (tn) (Entered: 02/19/2016)

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:15-cv-02930
Status	Closed

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
NAJEE GARNETT,

Plaintiff,

v.

THE CITY OF NEW YORK, *et al.*,

Defendants. :
:-----X

USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: February 18, 2016

15 Civ. 2930 (KPF)

ORDER
OF DISCONTINUANCE

KATHERINE POLK FAILLA, District Judge:

The parties recently reported to the Court that they have reached a settlement in principle. Accordingly, it is hereby:

ORDERED that this action be conditionally discontinued without prejudice and without costs; provided, however, that within thirty (30) days of the date of this Order, the parties may submit to the Court their own Stipulation of Settlement and Dismissal for the Court to So Order. Otherwise, within such time Plaintiff may apply by letter for restoration of the action to the active calendar of this Court in the event that the settlement is not consummated. Upon such application for reinstatement, the parties shall continue to be subject to the Court's jurisdiction, the Court shall promptly reinstate the action to its active docket, and the parties shall be directed to appear before the Court, without the necessity of additional process, on a date within ten (10) days of the application, to schedule remaining pretrial

proceedings and/or dispositive motions, as appropriate. This Order shall be deemed a final discontinuance of the action with prejudice in the event that Plaintiff has not requested restoration of the case to the active calendar within such 30-day period.

The Clerk of Court is directed to terminate all pending motions, adjourn all remaining dates, and close this case.

SO ORDERED.

Dated: February 18, 2016
New York, New York



KATHERINE POLK FAILLA
United States District Judge

JUDGE FAILLA

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

NAJEE GARNETT,

Plaintiff,

-against-

THE CITY OF NEW YORK; MICHAEL CINTRON;
KARLINA CORTES; JULIO MEYRELES;
NORMAN ORTEGA; CHRISTOPHER REILLY;
LUIS SANCHEZ; GASPASCIACCA; and
JOHN/JANE DOES, Nos. 1-10 (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

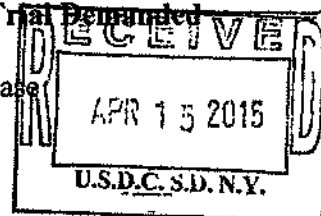
Defendants.

15 CV 2930

COMPLAINT

Jury Trial Demanded

ECF Case



Plaintiff NAJEE GARNETT, by his attorney, Robert T. Perry, respectfully alleges as follows:

NATURE OF ACTION

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts supplemental claims under New York law.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. The Court has jurisdiction over plaintiff's federal law claims under 28 U.S.C. § 1331 and 28 U.S.C. § 1343.

4. The Court has jurisdiction over plaintiff's supplemental state law claims under 28 U.S.C. § 1367.

5. Venue is proper in the Southern District of New York under 28 U.S.C. § 1391(b) in that a substantial part of the events giving rise to plaintiff's claims occurred in this district.

JURY DEMAND

6. Plaintiff demands trial by jury of all issues properly triable thereby pursuant to Fed. R. Civ. P. 38(b).

PARTIES

7. Plaintiff NAJEE GARNETT is a resident of the City, County, and State of New York.

8. Defendant THE CITY OF NEW YORK ("the City") is, and was at all times relevant herein, a municipal corporation duly organized and existing under the laws of the State of New York. The City maintains the New York City Police Department ("NYPD"), which acts as the City's agent in the area of law enforcement and for which the City is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant MICHAEL CINTRON (Shield No. 22065) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Cintron was a police officer assigned to the 23rd Precinct. Defendant Cintron is being sued in his individual capacity.

10. Defendant KARLINA CORTES (Shield No. 13048) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the

relevant times herein, defendant Cortes was a police officer assigned to the 23rd Precinct.

Defendant Cortes is being sued in her individual capacity.

11. Defendant JULIO MEYRELES (Shield No. 22000) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Meyreles was a police officer assigned to the 23rd Precinct.

Defendant Meyreles is being sued in his individual capacity.

12. Defendant NORMAN ORTEGA (Shield No. 25560) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Ortega was a police officer assigned to the 23rd Precinct.

Defendant Ortega is being sued in his individual capacity.

13. Defendant CHRISTOPHER REILLY (Shield No. 17570) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Reilly was a police officer assigned to the 23rd Precinct. Defendant Reilly is being sued in his individual capacity.

14. Defendant LUIS SANCHEZ (Shield No. 13506) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Sanchez was a police officer assigned to the 23rd Precinct. Defendant Sanchez is being sued in his individual capacity.

15. Defendant GASPAR SCIACCA (Shield No. 04264) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Sciacca was a sergeant assigned to the 23rd Precinct. Defendant Sciacca is being sued in his individual capacity.

16. All “John Doe” and “Jane Doe” defendants are, and were at all relevant times herein, duly appointed agents, employees, officers, and servants of the NYPD. The Doe defendants are being sued in their individual and official capacities.

17. At all relevant times herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, employees, officers, and servants of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions and duties. At all relevant times herein, the individual defendants were acting for and on behalf of the NYPD, with the power and authority vested in them as agents, employees, officers, and servants of the NYPD.

18. At all relevant times herein, the individual defendants acted jointly and in concert with each other. Each individual defendant had the duty and the opportunity to protect plaintiff from the unlawful actions of the other individual defendants but each individual defendant failed and refused to perform such duty, thereby proximately causing plaintiff’s injuries.

STATEMENT OF FACTS

The January 17, 2014 Incident

19. On Friday, January 17, 2014, at about 5:40 p.m., plaintiff was leaving the public housing building at 1839 Lexington Avenue in Manhattan, where he had been visiting a friend Shana Howard, who lived in Apartment 9F.

20. As plaintiff passed through the lobby on his way out of the building, police officers, including defendants Cintron, Cortes, Ortega, Reilly, Sanchez, and Sciacca, arbitrarily stopped, questioned, searched, and arrested plaintiff without probable cause to believe that plaintiff had committed any crime or offense, reasonable suspicion that criminal activity had occurred or was occurring, or even a common right to inquire of plaintiff.

21. Plaintiff was struck by officers in the back, face, head, and neck.

22. The officers who struck plaintiff used more force than was reasonably necessary to take plaintiff into custody.

23. Plaintiff did not provoke the assault on him and offered no physical resistance.

24. As a result of the police assault, at some point in the lobby or en route to the 23rd Precinct, plaintiff began suffering seizures and lapsed into a coma.

25. Plaintiff was taken to Metropolitan Hospital Center, where he remained in a coma for five or six days, until Wednesday or Thursday, January 22 or 23, 2014, and remained hospitalized until Saturday, January 25, 2014.

26. In connection with plaintiff's arrest, police officers, including defendants Cintron, Cortes, Ortega, Reilly, Sanchez and Sciacca, conspired to prepare and did prepare a false and misleading police report which they forwarded to the New York County District Attorney's Office ("District Attorney") and conspired to make and did make false and misleading statements to the District Attorney. As a result, the District Attorney decided to prosecute plaintiff.

27. On January 25, 2014, plaintiff was arraigned in the Criminal Court of the City of New York, New York County, and charged with Criminal Trespass in the Second Degree, Resisting Arrest, Attempted Tampering With Physical Evidence, Criminal Trespass in the Third Degree, and Unlawful Possession of Marijuana in a complaint sworn to by defendant Cortes, alleging, among other things, based on information provided by defendant Sanchez, that while transporting plaintiff to the 23rd Precinct, defendant Sanchez observed plaintiff swallow a white powdery substance known to be cocaine.

28. These allegations were false, as plaintiff never swallowed any white powdery substance, let alone cocaine.

29. Plaintiff pled not guilty and was released on his own recognizance.

30. Plaintiff thereafter made five more court appearances to defend himself against the criminal charges.

31. On October 8, 2014, the criminal charges were dismissed for failure to prosecute.

32. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of liberty, physical restraints, and violation of his constitutional rights.

The February 14, 2014 Incident

33. On Friday, February 14, 2014, at about 6:55 p.m., plaintiff entered the lobby of the public housing building at 1829 Lexington Avenue in Manhattan, where plaintiff had a standing invitation to visit from his friend Raymond Stargill, who lived in Apartment 8G.

34. Officers, including defendants Sanchez and Meyreles, arbitrarily stopped, questioned, searched, and arrested plaintiff without probable cause to believe that plaintiff had committed any crime or offense, reasonable suspicion that criminal activity had occurred or was occurring, or even a common right to inquire of plaintiff.

35. Plaintiff was taken to the 23rd Precinct, where he was made to remove his clothes and squat for inspection of his anal cavity without probable cause or reasonable suspicion to believe that he had committed any crime or offense.

36. No drugs or contraband were found on plaintiff's person or in his possession.

37. After several hours in custody, plaintiff was released with a desk appearance ticket charging him with Criminal Trespass in the Second Degree and Criminal Trespass in the Third Degree.

38. In connection with plaintiff's arrest, police officers, including defendants Sanchez and Meyreles, conspired to prepare and did prepare a false and misleading police report which they forwarded to the District Attorney and conspired to make and did make false and misleading statements to the District Attorney. As a result, the District Attorney decided to prosecute plaintiff.

39. On March 31, 2014, plaintiff was arraigned in the Criminal Court of the City of New York, New York County, on the criminal charges against him. Plaintiff pled not guilty and was released on his own recognizance.

40. Plaintiff thereafter made three more court appearances to defend himself against the criminal charges.

41. On July 30, 2014, the criminal charges were dismissed for failure to prosecute.

42. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of liberty, physical restraints, and violation of his constitutional rights.

Monell Allegations

43. The above police misconduct occurred as a direct result of unconstitutional customs, policies, and practices of the City and the NYPD, including but not limited to: making unlawful stops, questioning, frisks, searches, and arrests in public housing buildings; arresting innocent people in order to meet productivity goals or arrest quotas or for professional

advancement, overtime compensation, and/or other objectives outside the ends of justice; and falsifying evidence in an attempt to justify a false arrest.

44. The existence of such unconstitutional customs, policies, and practices may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed against the City and NYPD police officers, as well as from notices of claims filed with the City's Office of Comptroller and complaints filed with the NYPD's Internal Affairs Bureau and the City's Civilian Complaint Review Board. *See, e.g., Davis v. City of New York*, 10 Civ. 699 (SAS), 902 F. Supp.2d 405 (S.D.N.Y. 2012) (granting in part and denying in part the City's motion for partial summary judgment in a class action alleging widespread pattern of unlawful stops, questioning, frisks, searches, and arrests in public housing buildings); *Garnett v. Undercover Officer C0039*, 13 Civ. 7083 (GHW), 2015 WL 1539044 (S.D.N.Y. April 6, 2015) (denying undercover officer's motion for judgment as a matter of law or alternatively for a new trial, where jury had found that undercover officer fabricated evidence to support conviction).

45. In denying the City's motion to dismiss a municipal liability claim in *Colon v. City of New York*, No. 09 Civ. 8 (JBW), 2009 WL 4263362 (E.D.N.Y. Nov. 25, 2009), the Honorable Jack B. Weinstein observed:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department, there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

Id. at *2.

46. Seemingly acknowledging the problem, then New York City Police Commissioner Raymond E. Kelly stated in October 2009, "When it happens, it's not for personal gain. It's more for convenience." Christine Hauser, *Few Results for Reports of Police Misconduct*, N.Y. Times, Oct. 5, 2009, at A19.

47. Between 2005 and 2009, the NYPD refused to prosecute 40% of the cases referred by the Civilian Complaint Review Board ("CCRB") for prosecution. Christine Hauser, *Few Results for Reports of Police Misconduct*, N.Y. Times, Oct. 5, 2009, at A19. Moreover, only 25% of the cases found substantiated by the CCRB during that period resulted in NYPD discipline more severe than verbal instructions. *Id.*

48. The City has inadequately screened, hired, retained, trained, and supervised police officers, including those named as defendants herein, to respect the constitutional rights of individuals with whom they come in contact.

FIRST CLAIM FOR RELIEF

(False Arrest Claim Under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

49. Plaintiff repeats and realleges paragraphs "1" through "48" with the same force and effect as if they were fully set forth herein.

50. Defendants, acting in concert and within the scope of their authority, stopped, arrested, and caused plaintiff to be imprisoned without probable cause or reasonable suspicion to believe that plaintiff had committed any crime or offense, in violation of plaintiff's right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

SECOND CLAIM FOR RELIEF

(Excessive Force Claim Under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

51. Plaintiff repeats and realleges paragraphs “1” through “50” with the same force and effect as if they were fully set forth herein.

52. Defendants, acting in concert and within the scope of their authority, used objectively unreasonable force in arresting plaintiff, in violation of plaintiff’s right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

THIRD CLAIM FOR RELIEF

(Malicious Prosecution Claim Under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

53. Plaintiff repeats and realleges paragraphs “1” through “52” with the same force and effect as if they were fully set forth herein.

54. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be prosecuted with malice and without probable cause -- a prosecution that terminated in plaintiff’s favor -- in violation of plaintiff’s right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

FOURTH CLAIM FOR RELIEF

(Violation-of-Right-to-Fair-Trial Claim under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

55. Plaintiff repeats and realleges paragraphs “1” through “54” with the same force and effect as if they were fully set forth herein.

56. Defendants created false, fabricated evidence against plaintiff and used that evidence against plaintiff in legal proceedings. As a result, plaintiff suffered a violation of his constitutional right to a fair trial, as guaranteed by the Fourteenth Amendments to the United

States Constitution.

FIFTH CLAIM FOR RELIEF

(Failure-to-Intervene Claim Under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

57. Plaintiff repeats and realleges paragraphs “1” through “56” with the same force and effect as if they were fully set forth herein.

58. Each individual defendant had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in that defendant’s presence by other police officers, but failed to intervene to prevent the unlawful conduct, despite having had a realistic opportunity to do so, in violation of plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution.

SIXTH CLAIM FOR RELIEF

(False Arrest Claim Under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

59. Plaintiff repeats and realleges paragraphs “1” through “58” with the same force and effect as if they were fully set forth herein.

60. Defendants, acting in concert and within the scope of their authority, stopped, arrested, and caused plaintiff to be imprisoned without probable cause or reasonable suspicion to believe that plaintiff had committed any crime or offense, in violation of plaintiff’s right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

SEVENTH CLAIM FOR RELIEF

(Unlawful Strip Search Claim Under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

61. Plaintiff repeats and realleges paragraphs “1” through “60” with the same force and effect as if they were fully set forth herein.

62. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be strip searched without probable cause or reasonable suspicion to believe that plaintiff had committed any crime or offense, in violation of plaintiff's right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

EIGHTH CLAIM FOR RELIEF

(Malicious Prosecution Claim Under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

63. Plaintiff repeats and realleges paragraphs "1" through "62" with the same force and effect as if they were fully set forth herein.

64. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be prosecuted with malice and without probable cause -- a prosecution that terminated in plaintiff's favor -- in violation of plaintiff's right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

NINTH CLAIM FOR RELIEF

(Violation-of-Right-to-Fair-Trial Claim under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

65. Plaintiff repeats and realleges paragraphs "1" through "64" with the same force and effect as if they were fully set forth herein.

66. Defendants created false, fabricated evidence against plaintiff and used that evidence against plaintiff in legal proceedings, in violation of plaintiff's right to a fair trial under the Fourteenth Amendment to the United States Constitution.

TENTH CLAIM FOR RELIEF

(Failure-to-Intervene Claim Under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

67. Plaintiff repeats and realleges paragraphs “1” through “66” with the same force and effect as if they were fully set forth herein.

68. Each individual defendant had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in that defendant’s presence by other police officers, but failed to intervene to prevent the unlawful conduct, despite having had a realistic opportunity to do so, in violation of plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution.

ELEVENTH CLAIM FOR RELIEF

(Municipal Liability Claim Under 42 U.S.C. § 1983 – The January 17, 2014 Incident)

69. Plaintiff repeats and realleges paragraphs “1” through “68” with the same force and effect as if they were fully set forth herein.

70. Defendants, singly and collectively, acting under color of state law, engaged in conduct that constituted customs, policies, and practices forbidden by the United States Constitution, including, but not limited to: making unlawful stops, questioning, frisks, searches, and arrests in public housing buildings; arresting innocent people in order to meet productivity goals or arrest quotas or for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and falsifying evidence in an attempt to justify a false arrest.

71. The City and the NYPD have inadequately screened, hired, retained, trained and supervised police officers.

72. The foregoing customs, policies, and practices constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

73. The foregoing customs, policies, and practices were the direct and proximate cause of the constitutional violations suffered by plaintiff.

74. The foregoing customs, policies, and practices were the moving force behind the constitutional violations suffered by plaintiff.

75. The foregoing customs, policies, and practices deprived plaintiff of the right to be free from unreasonable seizure, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

TWELFTH CLAIM FOR RELIEF

(Municipal Liability Claim Under 42 U.S.C. § 1983 – The February 14, 2014 Incident)

76. Plaintiff repeats and realleges paragraphs "1" through "75" with the same force and effect as if they were fully set forth herein.

77. Defendants, singly and collectively, acting under color of state law, engaged in conduct that constituted customs, policies, and practices forbidden by the United States Constitution, including, but not limited to: making unlawful stops, questioning, frisks, searches, and arrests in public housing buildings; arresting innocent people in order to meet productivity goals or arrest quotas or for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and falsifying evidence in an attempt to justify a false arrest.

78. The City and the NYPD have inadequately screened, hired, retained, trained and supervised police officers.

79. The foregoing customs, policies, and practices constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

80. The foregoing customs, policies, and practices were the direct and proximate cause of the constitutional violations suffered by plaintiff.

81. The foregoing customs, policies, and practices were the moving force behind the constitutional violations suffered by plaintiff.

82. The foregoing customs, policies, and practices deprived plaintiff of the right to be free from unreasonable seizure, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

Supplemental State Law Claims

83. Plaintiff repeats and realleges paragraphs "1" through "82" with the same force and effect as if they were fully set forth herein.

84. Within ninety (90) days after the claims herein arose, plaintiff duly served upon, presented to, and filed with the City a Notice of Claim setting forth all facts and information required under New York General Municipal Law § 50-e.

85. More than thirty (30) days have elapsed since the presentation of plaintiff's claims to the City. The City has wholly neglected or refused to make an adjustment or payment thereof.

86. This action was commenced within one (1) year and ninety (90) days after the claims accrued.

87. Plaintiff has complied with all conditions precedent to maintaining the instant action.

THIRTEENTH CLAIM FOR RELIEF

(False Arrest Under New York Law)

88. Plaintiff repeats and realleges paragraphs "1" through "87" with the same force and effect as if they were fully set forth herein.

89. Defendants, acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that plaintiff had committed any crime or offense, and without any warrant or authority to do so.

FOURTEENTH CLAIM FOR RELIEF

(Assault Under New York Law)

90. Plaintiff repeats and realleges paragraphs "1" through "89" with the same force and effect as if they were fully set forth herein.

91. Defendants, acting in concert and within the scope of their authority, placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

FIFTEENTH CLAIM FOR RELIEF

(Battery Under New York Law)

92. Plaintiff repeats and realleges paragraphs "1" through "91" with the same force and effect as if they were fully set forth herein.

93. Defendants, acting in concert and within the scope of their authority, made offensive contact with plaintiff without privilege or consent.

SIXTEENTH CLAIM FOR RELIEF

(Malicious Prosecution Under New York Law)

94. Plaintiff repeats and realleges paragraphs "1" through "93" with the same force and effect as if they were fully set forth herein.

95. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be prosecuted with malice and without probable cause -- a prosecution that terminated in plaintiff's favor -- in violation of New York law.

SEVENTEENTH CLAIM FOR RELIEF

(Respondeat Superior Liability Under New York Law)

96. Plaintiff repeats and realleges paragraphs "1" through "95" with the same force and effect as if they were fully set forth herein.

97. The City is vicariously liable for the acts of their employees and agents who were on duty and acting in the scope of their employment when they engaged in the above unlawful conduct.

EIGHTEENTH CLAIM FOR RELIEF

(Negligent Screening, Hiring, and Retention Under New York Law)

98. Plaintiff repeats and realleges paragraphs "1" through "97" with the same force and effect as if they were fully set forth herein.

99. The City failed to use reasonable care in the screening, hiring, and retention of the NYPD employees who participated in the above unlawful conduct.

NINETEENTH CLAIM FOR RELIEF

(Negligent Training and Supervision Under New York Law)

100. Plaintiff repeats and realleges paragraphs "1" through "99" with the same force and effect as if they were fully set forth herein.

101. The City failed to use reasonable care in the training and supervision of the NYPD employees who participated in the above unlawful conduct.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and severally against all the defendants:

- (A) Compensatory damages in an amount to be determined at trial;
- (B) Punitive damages in an amount to be determined at trial;
- (C) Reasonable attorney's fees and costs of this litigation; and
- (D) Such other relief as this Court deems just and proper.

Dated: Brooklyn, New York
April 15, 2015

Respectfully submitted,

Robert T. Perry
ROBERT T. PERRY (RP-1199)
45 Main Street, Suite 230
Brooklyn, New York 11201
(212) 219-9410
Attorney for Plaintiff

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
NAJEE GARNETT,

Plaintiff,

-against-

THE CITY OF NEW YORK; MICHAEL CINTRON;
KARLINA CORTES; JULIO MEYRELES;
NORMAN ORTEGA; CHRISTOPHER REILLY;
LUIS SANCHEZ; GASPAR SCIACCA; and
JOHN/JANE DOES, Nos. 1-10 (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

Defendants.
-----X

COMPLAINT

ROBERT T. PERRY
45 Main Street, Suite 230
Brooklyn, New York 11201
(212) 219-9410
Attorney for Plaintiff

Current on Bloomberg Law as of May 11, 2015 11:13:23

U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:12-cv-02904-ER

Diaz v. Cortes et al

Date Filed: Apr 12, 2012
Status: Closed
Nature of suit: 550 Prisoner: Civil Rights
Assigned to: Judge Edgardo Ramos
Cause: 42:1983 Civil Rights Act
Date terminated: Feb 10, 2015
Jurisdiction: Federal Question
Jury demand: Both

Parties and Attorneys

Plaintiff

Jose Diaz

Attorneys and Firms

Jose Diaz
1420 Wood Road
#2C
Bronx, NY 10462
PRO SE

Defendant

NYPD Police Officer Cortes

Attorneys and Firms

Daniel Louis Passeser
New York City Law Department
100 Church Street
New York, NY 10007
(212) 356-2322
Fax: (212) 788-9776
dpasseser@law.nyc.gov
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

NYPD Police Officer Matos

Attorneys and Firms

Daniel Louis Passeser
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Deputy Mayor
TERMINATED: 05/22/2012

Defendant

NYC Comptroller
TERMINATED: 05/22/2012

Defendant

Corporation Counsel
TERMINATED: 05/22/2012

Defendant

City of New York

Attorneys and Firms

Daniel Louis Passeser
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Docket Entries

Reverse Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Action	Description
1	Apr 12, 2012	Request	DECLARATION IN SUPPORT OF REQUEST TO PROCEED IN FORMA PAUPERIS. Document filed by Jose Diaz.(rdz) (Entered: 04/17/2012)
2	Apr 12, 2012	View	COMPLAINT against Corporation Counsel, Cortes, Deputy Mayor, Matos, NYC Comptroller. Document filed by Jose Diaz.(rdz) (Entered: 04/17/2012)
	Apr 12, 2012		Case Designated ECF. (rdz) (Entered: 04/17/2012)
	Apr 12, 2012		Case Designated PLRA purs. to Prison Litigation Reform Act Section 7(2)(g)(2). (rdz) (Entered: 04/17/2012)
	May 17, 2012		Mailed a copy of the change of address notification to Jose Diaz at the Anna M. Kross Center. (vn) (Entered: 05/17/2012)
3	May 17, 2012	Request	ORDER GRANTING IFP APPLICATION: Leave to proceed in this Court without payment of fees is authorized, 28 U.S.C. § 1915. (Signed by Judge Loretta A. Preska on 5/17/2012) (mro) (Entered: 05/17/2012)
4	May 21, 2012	Request	NOTICE OF CASE ASSIGNMENT to Judge Robert W. Sweet. Judge Unassigned is no longer assigned to the case. (pgu) (Entered: 05/21/2012)
	May 21, 2012		Magistrate Judge James L. Cott is so designated. (pgu) (Entered: 05/21/2012)
	May 21, 2012		Mailed notice re: Case Designation, 4 Notice of Case Assignment/Reassignment to the attorney(s) of record. (pgu) (Entered: 05/21/2012)
6	May 22, 2012	Request	ORDER OF SERVICE: The Court dismisses all claims against defendants "Deputy Mayor", "NYC Comptroller" and "Corporation Counsel" Plaintiff's 1983 individual capacity damages claims against those Defendants are dismissed without prejudice. In addition, Plaintiff's official capacity damages claims against Defendants Cortes and Matos are dismissed. All claims for declaratory relief are dismissed due

			to lack of standing. The Clerk of Court is directed to issue a Summons in this action, and Plaintiff is directed to serve the Summons and Complaint upon each Defendant within 120 days of the issuance of the Summons. If service has not been made within the 120 days, and Plaintiff has not requested an extension of time to serve within that 120 days, the Complaint may be dismissed for failure to prosecute, pursuant to Rules 4 and 41 of the Federal Rules of Civil Procedure. The Clerk of Court is to send a copy of this Order and the service package to Plaintiff at the following address: Jose Diaz, # 3491105710, Anna M. Kross Center, 18-18 Hazen Street, East Elmhurst, New York 11370. SO ORDERED. (Signed by Judge Robert W. Sweet on 5/22/2012) (ama) Modified on 6/7/2012 (ama). (Entered: 05/22/2012)
	May 22, 2012		Transmission to Docket Assistant Clerk. Transmitted re: 6 Order of Service, to the Docket Assistant Clerk for case processing. (ama) (Entered: 05/22/2012)
	May 29, 2012		Received Return Receipt of 6 Order of Service as to Jose Diaz, which was served by Certified Mail # 7003 0500 0000 0343 1499, on 5/25/2012. (ft) (Entered: 05/29/2012)
	June 6, 2012		SUMMONS ISSUED as to City of New York, Cortes, Matos. (jcs) (Entered: 06/06/2012)
	June 6, 2012		Authorization Deduction Letter Mailed to Downstate Correctional Facility on 06/06/2012. (jcs) (Entered: 06/06/2012)
	June 6, 2012		FRCP 4 (Service Package Mailed) to plaintiff at the address Downstate Correctional Facility on 06/06/2012 via Federal Express AIRBILL # 877126696650. The service package included: an original summons, copies of the summons, a certified In Forma Pauperis Application (IFP), copies of the IFP, complaint, United States Marshal (U.S.M.-285) forms, a pro se handbook, change of address postcards, Judge's individual rules, instructions on how to file a motion and opposition, instructions on filing an amended complaint, application for counsel, a consent to proceed before a Magistrate Judge, affirmation of service forms, and a Change of Address Confirmation Letter. (jcs) (Entered: 06/06/2012)
7	June 20, 2012	Request	PRO SE MEMORANDUM dated 6/5/2012 re: CHANGE OF ADDRESS for Jose Diaz. New Address: 12-A-2464, Downstate Correctional Facility, 121 Box F, Red Schoolhouse Road, Fishkill, NY, 12524. (lmb) (Entered: 06/22/2012)
9	Sept 20, 2012	View	MOTION for Extension of Time. Document filed by Jose Diaz.(lmb) (Entered: 10/10/2012)
8	Sept 21, 2012	Request	LETTER Re: PRO SE MEMORANDUM dated 9/14/2012 re: CHANGE OF ADDRESS for Jose Diaz. New Address:

	Sept 24, 2012		12A2464, Fishkill Correctional Facility, Box 1245, Beacon, New York, 12508. (rjm) (Entered: 09/26/2012)
			Request for Copies/Transcripts/Docket Sheet Mailed: Request for Docket Sheet from Jose Diaz mailed on 9/24/12. (sac) (Entered: 09/24/2012)
10	Oct 15, 2012	Request	ORDER: Defendant City of New York's letter dated October 9, 2012, will be treated as a motion and heard on submission on November 14, 2012. All motion papers shall be served in accordance with Local Civil Rule 6.1. (Signed by Judge Robert W. Sweet on 10/15/2012) (dj) (Entered: 10/15/2012)
11	Oct 22, 2012	Request	ORDER: Pursuant to Defendant City of New York's letter dated October 15, 2012, the motion scheduled to be heard on submission on November 14, 2012, is hereby withdrawn. (Signed by Judge Robert W. Sweet on 10/19/2012) (lmb) (Entered: 10/22/2012)
12	Nov 5, 2012	Request	NOTICE OF APPEARANCE by Daniel Louis Passeser on behalf of City of New York (Passeser, Daniel) (Entered: 11/05/2012)
13	Nov 16, 2012	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 11/14/2012 re: Request to extend answer deadline, sua sponte, from 11/14 to 1/14/2013 for Officer Matos to respond to the complaint. ENDORSEMENT: So ordered. Matos answer due 1/14/2013. (Signed by Judge Robert W. Sweet on 11/15/2012) (cd) (Entered: 11/19/2012)
	Nov 28, 2012		Request for Copies/Transcripts/Docket Sheet Mailed: Request for Docket Sheet from Jose Diaz mailed on 11/28/12. (sac) (Entered: 11/28/2012)
14	Dec 12, 2012	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 12/7/2012 re: I am writing to respectfully request an enlargement of time from, December 14, 2012 until January 14, 2013, for defendant City to answer or otherwise respond to the complaint. This the second request for an enlargement of time, and I am writing directly to the Court because plaintiff is incarcerated and proceeding pro se in this matter. ENDORSEMENT: So Ordered. (Signed by Judge Robert W. Sweet on 12/11/2012) (mt) (Entered: 12/12/2012)
	Dec 12, 2012		Set/Reset Deadlines: City of New York answer due 1/14/2013. (mt) (Entered: 12/12/2012)
15	Dec 12, 2012	Request	ORDER: Pursuant to the defendants' consent, plaintiff Jose Diaz's request for an extension of time in which to serve the purported defendants is hereby granted. Diaz will have 60 days from the date of this order in which to serve the purported defendants. (Signed by Judge Robert W. Sweet on 12/11/2012) (mt) (Entered: 12/12/2012)
17	Jan 10, 2013	Request	MARSHAL'S PROCESS RECEIPT AND RETURN OF

			SERVICE EXECUTED Summons and Complaint served. Cortes served on 12/31/2012, answer due 1/22/2013. Service was accepted by Sgt. Jamerson Black. Document filed by Jose Diaz. (djc) (Entered: 01/24/2013)
18	Jan 10, 2013	Request	MARSHAL'S PROCESS RECEIPT AND RETURN OF SERVICE EXECUTED Summons and Complaint served. Matos served on 12/31/2012, answer due 1/14/2013. Service was accepted by Sgt. Jamerson Black Document filed by Jose Diaz. (djc) (Entered: 01/24/2013)
16	Jan 16, 2013	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 1/14/2013 re: Defense counsel writes to request a stay of the present civil proceeding in its entirety pending the resolution of a current New York Police Department Internal Affairs Bureau investigation which related to the claims in this case. ENDORSEMENT: This action is stayed for 60 days. So Ordered. (Signed by Judge Robert W. Sweet on 1/15/2013) (ago) (Entered: 01/16/2013)
19	Mar 19, 2013	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 3/15/2013 re: Defendant City respectfully requests that the Court continue the stay of this litigation as to all parties and deadlines for an additional sixty days, until May 17, 2013, at which time the undersigned will advise the Court as to the status of the IAB investigation. ENDORSEMENT: So ordered. (Signed by Judge Robert W. Sweet on 3/18/2013) (ft) (Entered: 03/19/2013)
20	May 17, 2013	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 5/16/2013 re: Request that the Court continue the stay of this litigation as to all parties and deadlines for an additional 45 days, until 7/1/2013. ENDORSEMENT: The application is granted. (Signed by Judge John F. Keenan, Part One on 5/17/2013) (cd) (Entered: 05/20/2013)
21	July 10, 2013	Request	ENDORSED LETTER addressed to Judge Robert W. Sweet from Daniel Passeser dated 6/27/2013 re: Accordingly, and for the reasons set forth herein and in the undersigned's original stay application dated January 14, 2013, defendant City respectfully requests that the Court continue the stay of this litigation as to all parties and deadlines for an additional forty-five days, until August 15, 2013, at which time the undersigned will advise the Court as to the status of the IAB investigation. ENDORSEMENT: So Ordered. (Signed by Judge Robert W. Sweet on 7/7/2013) (cd) (Entered: 07/10/2013)
	Aug 19, 2013		NOTICE OF CASE REASSIGNMENT to Judge Edgardo Ramos. Judge Robert W. Sweet is no longer assigned to the case. (pgu) (Entered: 08/19/2013)
22	Aug 19, 2013	Request	ENDORSED LETTER addressed to Judge Edgardo Ramos

			from Daniel Passeser dated 8/19/2013 re: Counsel requests: (1) that the stay in this case be lifted; and (2) an enlargement of thirty days from August 15, 2013, until September 16, 2013 within which to respond to the complaint. ENDORSEMENT: The application is granted. ALL Defendants are granted until September 16 to answer the complaint. City of New York answer due 9/16/2013; Cortes answer due 9/16/2013. (Signed by Judge Edgardo Ramos on 8/19/2013) (ft) (Entered: 08/20/2013)
	Aug 20, 2013		Mailed notice re: Notice of Case Assignment/Reassignment to the Plaintiff(s) of record. (sbr) (Entered: 08/20/2013)
23	Sept 16, 2013	Request	ANSWER to 2 Complaint with JURY DEMAND. Document filed by City of New York, Cortes, Matos. (Attachments: # 1 Affidavit of service by mail)(Passeser, Daniel) (Entered: 09/16/2013)
24	Oct 22, 2013	Request	ORDER: IT IS HEREBY ORDERED, that the Warden or other official in charge of the Fishkill Correctional Facility, produce prisoner Jose Diaz, Identification No. 12-A-2464, at 9:30 am on November 20, 2013, at a suitable location within Fishkill Correctional Facility equipped with a telephone, for the purpose of participating by telephone in an initial pretrial conference with the Court and defense counsel in the above-referenced matter. Defendant's counsel shall appear in person, and the Plaintiff is to appear telephonically. Chambers will call the Facility on the above date/time. If this time and date presents an inconvenience, the Warden or the Warden's designee should promptly inform Chambers by calling (212) 805-0294. Initial Conference set for 11/20/2013 at 09:30 AM before Judge Edgardo Ramos. (Signed by Judge Edgardo Ramos on 10/22/2013) Copies Mailed By Chambers. (ft) (Entered: 10/22/2013)
	Nov 20, 2013		Minute Entry for proceedings held before Judge Edgardo Ramos: Initial Pretrial Conference held on 11/20/2013. Pro se Plaintiff appeared via telephone. Defendants' counsel was present. Discovery is to be completed by 3/21/14. (Status Conference set for 3/21/2014 at 09:30 AM before Judge Edgardo Ramos.). (Court Reporter Eve Giniger) (sc) (Entered: 11/21/2013)
25	Mar 6, 2014	Request	(LETTER) PRO SE MEMORANDUM dated 3/6/2014 re: CHANGE OF ADDRESS for Jose Diaz. New Address: 1420 Wood Road, #2C, Bronx, NY 10462. (sac) (Entered: 03/07/2014)
	Mar 21, 2014		Minute Entry for proceedings held before Judge Edgardo Ramos: Status Conference was held on 3/21/2014. Pro Se Plaintiff Jose Diaz was present. Defendants' counsel, Daniel Passeser, was present. Discovery is completed. Defendants are granted leave to file a motion for summary judgment with the following briefing schedule: Moving papers are due

			5/5/14. Opposition papers are due 7/11/14, and reply papers are due 7/25/14. Plaintiff may make an application requesting counsel after he receives a copy of the defendants' motion for summary judgment papers. (Court Reporter Sam Mauro) (sc) (Entered: 03/21/2014)
26	May 5, 2014	Request	FIRST MOTION for Summary Judgment . Document filed by City of New York, Cortes, Matos. Responses due by 7/11/2014 (Attachments: # 1 Affidavit of service by mail)(Passeser, Daniel) (Entered: 05/05/2014)
27	May 5, 2014	Request	DECLARATION of Daniel Passeser in Support re: 26 FIRST MOTION for Summary Judgment .. Document filed by City of New York, Cortes, Matos. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G)(Passeser, Daniel) (Entered: 05/05/2014)
28	May 5, 2014	Request	MEMORANDUM OF LAW in Support re: 26 FIRST MOTION for Summary Judgment . . Document filed by City of New York, Cortes, Matos. (Passeser, Daniel) (Entered: 05/05/2014)
29	May 5, 2014	Request	RULE 56.1 STATEMENT. Document filed by City of New York, Cortes, Matos. (Passeser, Daniel) (Entered: 05/05/2014)
30	May 5, 2014	Request	NOTICE of Local Rule 56.2 Notice to pro se litigants opposing a motion for summary judgment re: 26 FIRST MOTION for Summary Judgment .. Document filed by City of New York, Cortes, Matos. (Passeser, Daniel) (Entered: 05/05/2014)
31	July 28, 2014	Request	LETTER addressed to Judge Edgardo Ramos from Daniel Passeser dated July 28, 2014 re: status of defendants' motion for summary judgment. Document filed by City of New York, Cortes, Matos.(Passeser, Daniel) (Entered: 07/28/2014)
32	July 29, 2014	Request	ORDER re: 26 FIRST MOTION for Summary Judgment(Responses due by 8/29/2014). The Court hereby directs Plaintiff to respond to Defendant's motion for summary judgment by August 29, 2014. Plaintiff is reminded that failure to prosecute his claim or failure to comply with the Court's orders may result in dismissal of his case. fed.R.Civ.P.41. So Ordered (Signed by Judge Edgardo Ramos on 7/29/2014) (js) (Entered: 07/30/2014)
33	Sept 19, 2014	Request	ORDER: As set forth within, the Court still has yet to receive any communication from Plaintiff concerning his opposition to Defendants' motion for summary judgment - or otherwise - as of today's date. Accordingly, the Court hereby warns Plaintiff that this action will be dismissed without prejudice for failure to prosecute, pursuant to Rule 41 of the Federal Rules of Civil Procedure, unless within thirty days from the date of this order - that is, on or before October 19, 2014 -

			Plaintiff either (1) files an opposition to Defendants' motion for summary judgment, or (2) shows cause in writing why a further extension of the time limit for service of his opposition is warranted. The Clerk of the Court is respectfully directed to mail a copy of the instant Order to Plaintiff. It is SO ORDERED. (Signed by Judge Edgardo Ramos on 9/19/2014) (ajs) (Entered: 09/19/2014)
	Sept 19, 2014		Set/Reset Deadlines: Responses due by 10/19/2014 (ajs) (Entered: 09/19/2014)
	Sept 19, 2014		Transmission to Docket Assistant Clerk. Transmitted re: 33 Order,,,, to the Docket Assistant Clerk for case processing. (ajs) (Entered: 09/19/2014)
	Sept 22, 2014		Mailed a copy of 33 Order, to Jose Diaz 1420 Wood Road #2C Bronx, NY 10462. (ca) (Entered: 09/22/2014)
34	Feb 9, 2015	View	ORDER dismissing 26 Motion for Summary Judgment. Plaintiff's claims are DISMISSED without prejudice. The Clerk of the Court is respectfully directed to terminate Defendants' motion for summary judgment, Doc. 26, and close the case. (Signed by Judge Edgardo Ramos on 2/9/2015) (spo) (Entered: 02/09/2015)
	Feb 9, 2015		Transmission to Judgments and Orders Clerk. Transmitted re: 34 Order on Motion for Summary Judgment to the Judgments and Orders Clerk. (spo) (Entered: 02/09/2015)
35	Feb 10, 2015	View	CLERK'S JUDGMENT: It is, ORDERED, ADJUDGED AND DECREED: That for the reasons stated in the Court's Order dated February 9, 2015, Plaintiff's claims are dismissed without prejudice; accordingly, the case is closed. (Signed by Clerk of Court Ruby Krajick on 02/10/2015) (Attachments: # 1 Right to Appeal, # 2 Right to Appeal) The Clerks Office Has Mailed Copies. (km) (Entered: 02/10/2015)
	Feb 10, 2015		Transmission to Docket Assistant Clerk. Transmitted re: 35 Clerk's Judgment to the Docket Assistant Clerk for case processing. (km) (Entered: 02/10/2015)
	Feb 10, 2015		Mailed notice of Right to Appeal re: 34 Order on Motion for Summary Judgment, 35 Clerk's Judgment, to Jose Diaz 1420 Wood Road #2C Bronx, NY 10462. (ca) (Entered: 02/10/2015)

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Prisoner Petitions - Civil Rights[550]
Docket Number	1:12-cv-02904
Status	Closed

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

JOSE DIAZ,

Plaintiff,

– against –

NYPD OFFICER CORTES, SHIELD NO. 13048,
NYPD OFFICER MATOS, SHIELD NO. 8444,
and THE CITY OF NEW YORK,

Defendants.

ORDER
12 Civ. 2904 (ER)

Ramos, D.J.:

In this action, Jose Diaz (“Plaintiff” or “Diaz”), proceeding *pro se*, brings suit against the City of New York (“City”) and two New York City Police Department officers, Officers Cortes and Matos (together with the City, “Defendants”), alleging claims for violations of his civil rights pursuant to 42 U.S.C. § 1983. Doc. 2. For the reasons set forth below, the Court hereby DISMISSES Plaintiff’s claims for failure to prosecute, without prejudice.

I. Background

Plaintiff initiated this action on April 12, 2012. Doc. 2. After the completion of discovery, the Court granted Defendants leave to file a motion for summary judgment in accordance with the following briefing schedule: Defendants’ opening brief was due by May 5, 2014; Plaintiff’s opposition was due by July 11, 2014; and Defendants’ reply in support was due by July 25, 2014. *See* Dkt. No. 12 Civ. 2904 (ER) (Minute Entry 3/21/2014). On May 5, 2014, Defendants timely filed their motion papers, *see* Docs. 27-30, including the requisite “Notice to *Pro Se* Litigant Who Opposes A Motion For Summary Judgment,” which specifies that, pursuant

to Rule 56 of the Federal Rules of Civil Procedure, a possible consequence of Plaintiff's failure to timely respond to Defendants' motion is dismissal of Plaintiff's case. Doc. 30.

On July 29, 2014, having received from Plaintiff neither an opposition to Defendants' motion for summary judgment nor any correspondence or notice of change of address, the Court issued an order directing Plaintiff to respond to Defendants' summary judgment motion by August 29, 2014 and reminding Plaintiff that failure to prosecute his claim or to comply with the Court's orders might result in dismissal of his case pursuant to Rule 41 of the Federal Rules of Civil Procedure. Doc. 32. On September 19, 2014, still having received no opposition papers or correspondence from Plaintiff, the Court issued another order, warning Plaintiff that, pursuant to Rule 41, his action would be dismissed without prejudice for failure to prosecute unless, by October 19, 2014, Plaintiff either (1) filed an opposition to Defendants' motion for summary judgment, or (2) showed cause in writing why a further extension of the time limit for service of his opposition was warranted. Doc. 33.

II. Dismissal Without Prejudice Pursuant to Rule 41(b)

Rule 41(b) of the Federal Rules of Civil Procedure states that a defendant may move to dismiss an action or any claim against it "[i]f the plaintiff fails to prosecute or to comply with these rules or a court order." Fed R. Civ. P. 41(b). Unless the dismissal order states otherwise, a dismissal under Rule 41(b) operates as an adjudication on the merits. *Id.* District courts have discretion to effect dismissal pursuant to Rule 41(b). *See Hibbert v. Apfel*, No. 99 Civ. 4246 (SAS), 2000 WL 977683, at *1 (S.D.N.Y. July 17, 2000) (citing *Nita v. Connecticut Dep't of Envtl. Prot.*, 16 F.3d 482, 485 (2d Cir. 1994); *Alvarez v. Simmons Mkt. Research Bureau, Inc.*, 839 F.2d 930, 932 (2d Cir. 1988)). The Second Circuit has cautioned, however, that the discretion to dismiss a case under Rule 41(b) should be exercised sparingly and only when the

district judge is “sure of the impotence of lesser sanctions.” *Chira v. Lockheed Aircraft Corp.*, 634 F.2d 664, 665 (2d Cir. 1980); accord *Lewis v. Rawson*, 564 F.3d 569, 576 (2d Cir. 2009).

To determine whether to dismiss a case under Rule 41(b) for failure to prosecute, district courts employ a balancing test that considers the following five factors: (1) the duration of the plaintiff’s failures; (2) whether plaintiff has received notice that further delays would result in dismissal; (3) whether defendants are likely to be prejudiced by further delay; (4) whether the district judge has taken care to strike a balance between alleviating court calendar congestion and protecting a party’s right to due process and a fair chance to be heard; and (5) whether the district judge has adequately assessed the efficacy of lesser sanctions. *U.S. ex rel. Drake v. Norden Sys., Inc.*, 375 F.3d 248, 254 (2d Cir. 2004); *Shannon v. Gen. Elec. Co.*, 186 F.3d 186, 193-94 (2d Cir. 1999); *Jackson v. City of New York*, 22 F.3d 71, 74 (2d Cir. 1994).

Here, dismissal of Plaintiff’s claims without prejudice under Rule 41(b) is warranted. First, Plaintiff has failed to take any action with respect to his claims during the time period from at least July 9, 2014 to February 9, 2015.¹ Additionally, as of the date of this opinion, Plaintiff still has not complied with the Court’s August 29, 2014 and September 19, 2014 orders directing him to submit his opposition to Defendants’ motion for summary judgment. *See Hibbert*, 2000 WL 977683, at *3 (dismissing claims under Rule 41(b) where more than six months had elapsed after plaintiff’s receipt of a proposal to remand); *Chira*, 634 F.2d at 666-67 (noting that plaintiff’s failure to take any action for six months justified dismissal under Rule 41(b)).

¹ In a letter dated July 28, 2014, Defendants’ counsel indicated that, on July 9, 2014, he received a telephone call from Plaintiff inquiring about upcoming conferences in this matter. During that call, Defendants’ counsel informed Plaintiff that his opposition to Defendants’ motion for summary judgment was due on July 11, 2014, and Plaintiff indicated that he had never received Defendants’ motion papers. Defendants’ counsel advised Plaintiff to request an extension of time from the Court, mailed another copy of their moving papers to Plaintiff on July 10, 2014, and asked Plaintiff to contact Defendants’ counsel within one week if he did not receive Defendants’ mailing. The letter states that Defendants’ counsel has had no further communication with Plaintiff as of July 28, 2014. Doc. 31.

Second, Defendants' motion for summary judgment papers, Doc. 30, as well as the Court's August 29, 2014 and September 19, 2014 orders, Docs. 32-33, clearly put Plaintiff on notice that failure to respond to Defendants' motion might result in dismissal of his claims.

Third, prejudice to Defendant can be fairly presumed where, as here, there is a delay of more than six months and Plaintiff has ignored multiple court orders and deadlines without requesting any extension or offering any cause for the delay. *See Chira*, 634 F.2d at 666-68 (six-month delay caused prejudice); *accord Lyell Theatre Corp. v. Loews Corp.*, 682 F.2d 37, 42-43 (2d Cir. 1982) (noting that delays supporting dismissals have ranged from a matter of months to a period of years); *but see U.S. ex rel. Drake*, 375 F.3d at 255 (presumption of prejudice is rebuttable) (citing *LeSane v. Hall's Sec. Analyst, Inc.*, 239 F.3d 206, 210 (2d Cir. 2001)). In this case, dismissal is appropriate because Plaintiff has failed to respond to Defendants' summary judgment motion and failed to respond to the Court's orders. *See, e.g., Ashley v. City of New York*, No. 02 Civ. 3085 (LAP) (RLE), 2003 WL 1624215, at *2 (S.D.N.Y. Mar. 25, 2003) (dismissing without prejudice *pro se* plaintiff's claims under Rule 41(b) where over a year elapsed since he had filed his complaint and service had not been effectuated).

Fourth, dismissal of Plaintiff's claims without prejudice does not violate his due process rights. While Plaintiff has had the opportunity to be heard, he has failed to pursue his claims for a period of more than six months or to notify the Court of a change in address. "It is not the function of this Court to chase dilatory plaintiffs while other litigants in this district seek access to the courts." *Hibbert*, 2000 WL 977683, at *3. However, because Plaintiff's delay has not impacted the trial calendar, the Court finds that this factor also supports dismissal without prejudice, as opposed to adjudication on the merits. *See, e.g., Thrall v. Cent. New York Reg'l Transp. Auth.*, 399 F. App'x 663, 666 (2d Cir. 2010) (dismissal without prejudice would have

served the district court's need to clear its calendar without unduly penalizing a *pro se* litigant for failing to comply with a scheduling order).

Fifth, due to Plaintiff's failure to maintain contact with the Court, dismissal, rather than a further extension of time, is appropriate at this juncture. "[A]ll litigants, including pro ses, have an obligation to comply with court orders. When they flout that obligation they, like all litigants, must suffer the consequences of their actions." *Baba v. Japan Travel Bureau Int'l, Inc.*, 165 F.R.D. 398, 402 (S.D.N.Y. 1996), *aff'd*, 111 F.3d 2 (2d Cir. 1997) (quoting *McDonald v. Head Crim. Court Supervisor Officer*, 850 F.2d 121, 123 (2d Cir. 1988)); *see also Barclay v. Doe*, 207 F. App'x 102, 104 (2d Cir. 2006) (upholding dismissal with prejudice under Rule 41(b) where *pro se* plaintiff defied discovery order). Policy considerations also militate in favor of dismissal. As the Second Circuit has recognized, "[d]elays have dangerous ends," and "exhortations of diligence are impotent" unless district judges appropriately wield the power of dismissal. *Chira*, 634 F.2d at 668. However, because the Court finds that lesser sanctions than dismissal *with* prejudice are potentially viable, and due to Plaintiff's *pro se* status, Plaintiff's claims will be dismissed *without* prejudice. *See Lyell Theatre Corp.*, 682 F.2d at 43 (when imposed, the sanction of dismissal under Rule 41(b) "operates as an adjudication upon the merits, but may be without prejudice if so specified by the court imposing it") (internal citation and quotation marks omitted); *LeSane*, 239 F.3d at 209 (observing that Rule 41(b) dismissal with prejudice should be used with caution, because "*pro se* plaintiffs should be granted special leniency regarding procedural matters") (citing *Lucas v. Miles*, 84 F.3d 532, 535 (2d Cir. 1996)).

III. Conclusion

For the reasons set forth above, Plaintiff's claims are DISMISSED without prejudice. The Clerk of the Court is respectfully directed to terminate Defendants' motion for summary judgment, Doc. 26, and close the case.

It is SO ORDERED.

Dated: February 9, 2015
New York, New York



Edgardo Ramos, U.S.D.J.

12 CV 02904

To Count

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Jose Diaz

PLAINTIFF

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

NYPD Police Officer CORTES SHIELD
13048
NYPD Police Officer MATOS SHIELD
8444
CITY OF NEW YORK Deputy Mayor

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)

Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

FILED
U.S. DISTRICT COURT
12 APR 12 P 3:59
S.D. OF N.Y.

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name JOSE DIAZ
ID # 349-11-05710
Current Institution GRUC 0909 HAZEN STREET
Address EAST ELMHURST, NY
11370

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name NYPD Police Officer CORTES Shield # 13048
Where Currently Employed 23rd Precinct
Address 162 EAST 102 STREET
NY NY 10029

Defendant No. 2 Name NYPD Police Officer MATOS Shield # 8444
Where Currently Employed 23rd Precinct
Address 162 EAST 102 STREET
NY NY 10029

Defendant No. 3 Name Deputy Mayor Shield # _____
Where Currently Employed One Police Plaza
Address NY NY
10007

Defendant No. 4 Name NYC Comptroller Shield # _____
Where Currently Employed One Centre Street
Address One Centre ST Room 530
NY NY 10007

Defendant No. 5 Name Corporation Counsel Shield # _____
Where Currently Employed Office of Corp Counsel
Address 100 Church Street
NY NY 10007

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?

N/A

B. Where in the institution did the events giving rise to your claim(s) occur?

N/A

C. What date and approximate time did the events giving rise to your claim(s) occur?

4-8-2011

Approx 1:20 Am

D. Facts:

What happened to you?

See

Who did what?

ATTACK

Was anyone else involved?

LAW SUIT

Who else saw what happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. Arrested, Beaten with fist and feet. Injured BACK, RIB, FACE, STOMACH, Cytotoxic unconscious by NYPD And Broke Fingers And Loss, DAMAGE QAO Stole personal property. Treated At Hospital.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ☐ No ☒

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ____ No ____ Do Not Know ____

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ____ No ____ Do Not Know ____

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ____ No ____

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ____ No ____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any: _____

- G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____

Incident occurred during my Arrest
At my Apartment and Incident was
reported TO CC RB And A/C Comptroller

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). _____

See ATTACH SWT.

VI. Previous lawsuits:

On
these
claims

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes _____ No ☒

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes _____ No _____

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 6th day of April, 2012

Signature of Plaintiff

Jae Dion

Inmate Number

Institution Address

GRV 0909 HAZEN ST
EAST ELMHURST, NY
11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 6th day of April, 2012 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Jae Dion

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

JOSE DIAZ

PLAINTIFF

-AGAINST-

NYPD OFFICERS CORTES SHEILD#13048,
OFFICER MATOS SHEILD#8444,
CITY OF NEW YORK

CASE NO. _____

DEFENDANTS

PRELIMINARY STATEMENT

PLAINTIFF, PROSE JOSE DIAZ HEREBY SUES NYPD AND THE CITY OF NEW YORK FOR EXCESSIVE FORCE AND FOR DAMAGE AND LOSS OF HIS PERSONAL PROPERTY AND FOR ILLEGALLY SEARCH AND SEIZURE DURING HIS ARREST. HE SEEKS COMPENSTATION FOR HIS LOSS.

JURISDICTION

JURISDICTION IS INVOKED IN MANHATTAN NY BECAUSE BOTH PLAINTIFF AND THE DEFENDANTS RESIDE & THEIR EMPLOYMENT RESIDES AT THE 23RD PRECIENCT IN MANHATTAN N.Y. WHERE INCIDENT TOOK PLACE THUS JURISDICTION IS PROPER.

PARTIES

PLAINTIFF JOSE DIAZ IS A US CITIZEN AND CURRENTLY LIVES AT GRVC RIKERS LOCATED AT 0909 HAZEN STREET EAST ELMHURST, NY 11370. HE SUES DEFENDANTS IN THEIR INDIVIDUAL AND OFFICIAL CAPACITY.

DEFENDANTS NYPD PD CORTES SHEILD#13048 AND NYPD PD MATOS SHEILD#8444 ARE EMPLOYED AT THE 23RD PRECIENCT LOCATED AT 102nd Street IN MANHATTAN NEW YORK 100 29. AND DEFENDANT CITY OF NEW YORK MAYOR DEPUTY IS LOCATED AT 1 POLICE PLAZA NY NY 10007. ALL DEFENDANTS ARE BEING SUED INDIVIDUALLY AND OFFICIALLY CAPACITY WISE AND TRIAL BY JURY IS REQUESTED.

FACTS OF CASE

ON 4-8-2011 APPROX 1:20AM AT 55 EAST 102ND STREET APT 3A PLAINTIFF'S APARTMENT DOOR WAS "KNOCKED" OFF THE HINGES AND HE WAS BEATEN WITH FIST AND KICKED IN BACK, RIBS, FACE, STOMACH, ^{Broke Finger} AND CHOKED UNCONSCITIOUS BY NYPD OFFICERS CORTES AND MATOS WITHOUT PROVOCATION. PLAINTIFF AT NO TIME RESISTED. PLAINTIFF ALLEGED THAT POLICE TORE UP HIS APARTMENT DAMAGING EVERTHING IN THE APARTMENT. PLAINTIFF CLAIM DEFENDANTS DID NOT HAVE A VALID WARRANT AND ILLEGALLY SEARCHED AND SEIZED ALLEGED DRUGS, 60 THOUSAND DOLLARS HE COULD ACCOUNT FOR WHICH WAS LEGITAMENT FUNDS, THAT HIS JEWELRY, CLOTHING, RARE COINS

AND MANY OTHER ITEMS LISTED ON HIS "ITEMIZED LIST" WERE EITHER LOST, DAMAGED OR STOLEN ILLEGALLY BY THE DEFENDANTS. EVEN ITEMS BELONGING TO FAMILY. PLAINTIFF SUFFERED SEVERAL INJURIES AND WAS TREATED AT THE HOSPITAL NAMED METROPOLITAN AND LATER ARRESTED FOR CPC5 3RD. (SEE ITEMIZED LIST)

ALTHOUGH DEFENDANTS HAD CARE CUSTODY AND CONTROL OF PLAINTIFF PROPERTY THEY DESTROYED EVERYTHING AND VIOLATED NOT ONLY SEARCH AND SEIZURE LAWS, BUT ALSO FAILED TO FOLLOW NYPD POLICY WHICH STATES DURING SEARCH ALL CITIZEN ITEMS OR PREMISES SEARCHED SHOULD BE LEFT AS IT WAS FOUND.

BASED ON THIS DEFENDANTS ARE LIABLE UNDER THE LAW!

CAUSE OF ACTION

DEFENDANT ARE LIABLE AND VIOLATED PLAINTIFF RIGHTS BY UNNECESSARY USE OF FORCE, ILLEGAL SEARCH OF SEIZURE, AND FOR THE LOSS, DAMAGE, AND DESTRUCTION OF PLAINTIFF PERSONAL PROPERTY AS DESCRIBED IN THE COMPLAINT,

THIS VIOLATED PLAINTIFF'S 4TH, 8TH, AND 14TH AMENDMENT CONSTITUTIONAL RIGHTS UNDER THE US CONSTITUTION AND THEREFORE ARE LIABLE FOR COMPENSATION.

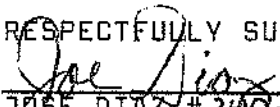
RELIEF:

BASED ON THE FOREGOING PLAINTIFF REQUEST THE FOLLOWING RELIEF:

1. THAT DEFEND BE HELD LIABLE BY DECLARATORY JUDGEMENT ORDER;
2. THAT DEFENDANT PAY PUNITIVE, AND COMPENSATORY DAMAGES IN THE AMOUNT OF 1 MILLION DOLLARS FOR PAIN AND SUFFERING AND MENTAL ANGUISH,
3. AND FOR THE LOSS OF ALL PERSONAL PROPERTY DEFENDANT COMPENSATE HIM IN THE AMOUNT OF 1 MILLION DOLLARS.

WHEREFORE; PLAINTIFF PRAYS HE IS GRANTED SAID RELIEF AND SUCH FURTHER RELIEF AS THE COURT DEEMS JUST AND PROPER.

RESPECTFULLY SUBMITTED,


JOSE DIAZ #349-11-05710 PROSE
GRVC RIKERS 0909 HAZEN ST
EAST ELMHURST, NY 11370

ITEMIZED LIST OF ALL ITEMS LOSS/AND OR DAMAGED

CLOTHING:

10 POLO SHIRTS
10 SEAN JOHN SHIRTS

10 AKADEMIK SHIRTS
DESIGNER DRESS SHIRTS (15)

(15) HOODIE SWEAT SHIRTS

40 PR OF UNDERWEAR TOP & BOTTOM

15 FITTED HATS , WINTER CAPS (10)

5 BATH ROBES, 5 PAIR OF FLANNEL PAJAMAS

15 LEATHER JACKETS

10 DOWNFILLED COATS

40 PR OF DRESS SHOES & BOOTS, AND SNEAKERS (20pr)

JEWELRY: 15 ^{GOLD} CHAINS AND DIAMOND BRACELETS AND 10 DIAMOND RINGS

RARE COIN COLLECTION

6 KODAK CAMERAS (DIGITAL) 1 CAMCORDER

LIVING ROOM PERSIAN RUG

FURNITURE:

SECTIONAL, LOVE SEAT, AND RECLINER CHAIR, LAMPS, ATTOMOM

THREE ROOM CLOCKS

FOUR COMPUTERS, 4 PRINTERS, TWO FAX MACHINES, SWIVEL CHAIR & COMPUTER DESK

4 PAINTINGS

TWO SCUPTURES

30, 000 RECORDS

1000 CDS

3 FLAT SCREEN TVS (30", 40", 60")

4 DVD PLAYERS

1000 DVD CDS

3 ANTIQUE VASE

STOVE

REFRIGERATER, WASHER, DRYER

4 FILE CABINETS

4 BOOK CASES

60,000 (SIXTY THOUSAND DOLLARS CASH) (FROM INHERITANCE)

STEREO , CD PLAYER, AND SURROUND SOUND SPEAKERS

5 CELL PHONES

5 DEBIT CARDS

FAMILY PHOTOS

RELIGIOUS MATERIAL

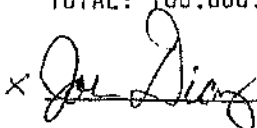
BOOKS, MAGAZINES, ENICLOPEDIAS, TABLE GAMES, 8 XBOX, AND 5 JOHN MADDEN FOOT
BALL GAMES,

3 BEDROOM SETS

POTS AND PAN, MICROWAVES (2), CROCK POT, NINGA MIXER, TOASTER, COFFEE MAKER

KNIFE SET , COOK WARE, BAKE WARE

TOTAL: 100,000.000

x 

04/02/12

07:44

THE CITY OF NEW YORK
DEPARTMENT OF CORRECTION

GRVC

DIAZ, JOSE
ID#3491105710

PHONE CALLS SINCE 03/28/12 06:20

TIME	TELEPHONE #	MI	AMOUNT
03/28/12 11:47	(646)544-8100	1	0.62
03/29/12 17:36	(646)544-8100	1	0.62

			1.24

EASTER SUNDAY IS APRIL 8TH

04/02/12 07:42

GRVC

The City of New York
Department of Correction
Inmate's Transaction List

Page : 1

BAC Number : 3491105710
Property Bag(s) :

DIAZ, JOSE

Date	Description	Notes	Reference	Amount	Balance
02/01/12	TELEPHONE	SUMM. IN 1258124379	1258132746	-.62	31.86
02/03/12	TELEPHONE	SUMM. IN 1258220133	1258228471	-.62	31.24
02/06/12	HAIRCUT/HAIRSTYLE		1258378419	-2.00	29.24
02/06/12	COMMISSARY		1258378510	-2.04	27.20
02/07/12	TELEPHONE	SUMM. IN 1258410731	1258418041	-.62	26.58
02/09/12	TELEPHONE	SUMM. IN 1258487722	1258494341	-.62	25.96
02/13/12	HAIRCUT/HAIRSTYLE		1258684623	-2.00	23.96
02/13/12	COMMISSARY		1258684624	-6.73	17.23
02/13/12	TELEPHONE	SUMM. IN 1258678058	1258699983	-.74	16.49
02/17/12	TELEPHONE	SUMM. IN 1258842924	1258869129	-.74	15.75
02/19/12	TELEPHONE	SUMM. IN 1258935367	1258962704	-.74	15.01
02/20/12	HAIRCUT/HAIRSTYLE		1258999209	-2.00	13.01
02/20/12	COMMISSARY		1258998342	-5.93	7.08
02/21/12	TELEPHONE	SUMM. IN 1259028086	1259046219	-.74	6.34
02/23/12	TELEPHONE	SUMM. IN 1259107441	1259112274	-.74	5.60
02/23/12	VISIT DEPOSIT		1259117020	50.00	55.60
02/24/12	TELEPHONE	SUMM. IN 1259158912	1259194071	-.74	54.86
02/25/12	TELEPHONE	SUMM. IN 1259210141	1259226747	-.62	54.24
02/26/12	TELEPHONE	SUMM. IN 1259252021	1259269563	-.62	53.62
02/27/12	HAIRCUT/HAIRSTYLE		1259315161	-2.00	51.62
02/27/12	COMMISSARY		1259316625	-.99	50.63
02/28/12	TELEPHONE	SUMM. IN 1259349100	1259358887	-.74	49.89
03/03/12	TELEPHONE	SUMM. IN 1259534132	1259540553	-.74	49.15
03/05/12	HAIRCUT/HAIRSTYLE		1259636689	-2.00	47.15
03/05/12	COMMISSARY		1259637381	-.99	46.16
03/06/12	TELEPHONE	SUMM. IN 1259670952	1259679439	-.74	45.42
03/08/12	TELEPHONE	SUMM. IN 1259758510	1259769182	-.74	44.68
03/12/12	COMMISSARY		1259937088	-5.60	39.08
03/12/12	HAIRCUT/HAIRSTYLE		1259938447	-2.00	37.08
03/12/12	TELEPHONE	SUMM. IN 1259937239	1259940630	-.62	36.46
03/13/12	TELEPHONE	SUMM. IN 1259977534	1259986666	-.74	35.72
03/15/12	TELEPHONE	SUMM. IN 1260062807	1260097526	-.62	35.10
03/16/12	TELEPHONE	SUMM. IN 1260114065	1260123816	-.74	34.36
03/18/12	TELEPHONE	SUMM. IN 1260199251	1260233391	-.62	33.74
03/19/12	COMMISSARY		1260249875	-3.56	30.18
03/19/12	TELEPHONE	SUMM. IN 1260249012	1260257280	-.74	29.44
03/20/12	TELEPHONE	SUMM. IN 1260295036	1260298627	-.74	28.70
03/22/12	TELEPHONE	SUMM. IN 1260374249	1260379973	-.62	28.08
03/23/12	TELEPHONE	SUMM. IN 1260421785	1260430508	-.74	27.34
03/23/12	VISIT DEPOSIT		1260430622	30.00	57.34
03/26/12	TELEPHONE	SUMM. IN 1260558716	1260566729	-.74	56.60

04/02/12 07:42

GRVC

The City of New York
Department of Correction
Inmate's Transaction List

Page : 2

BAC Number :3491105710

DIAZ, JOSE

Property Bag(s) :

Date	Description	Notes	Reference	Amount	Balance
03/27/12	TELEPHONE	SUMM. IN 1260596997	1260611033	-.62	55.98
03/28/12	HAIRCUT/HAIRSTYLE		1260640528	-2.00	53.98
03/28/12	COMMISSARY		1260640430	-10.10	43.88
03/28/12	TELEPHONE	SUMM. IN 1260639866	1260650519	-.62	43.26
03/29/12	TELEPHONE	SUMM. IN 1260681714	1260705956	-.62	42.64

Account Balance 42.64

Held Check Balance

Total Balance 42.64

Unpaid Restitution Balance

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

-----X
JOSE DIAZ,

Plaintiff,

-against-

NYPD OFFICER CORTES, SHIELD NO. 13048,
NYPD OFFICER MATOS, SHIELD NO. 8444,
and THE CITY OF NEW YORK,
Defendants.
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USDC SDNY

DOCUMENT

ELECTRONICALLY FILED 02/10/2015

12 CIVIL 2904 (ER)

JUDGMENT

Pro se Plaintiff Jose Diaz having filed suit against the City of New York ("City") and two New York City Police Department officers, Officer Cortes and Matos (together with the City, "Defendants"), alleging claims for violations of his civil rights pursuant to 42 U.S.C. § 1983, and Defendants having moved for summary judgment (Doc. #26), and the matter having come before the Honorable Edgardo Ramos, United States District Judge, and the Court, on February 9, 2015, having rendered its Order (Doc. #34) dismissing Plaintiff's claims without prejudice; and directing the Clerk of Court to terminate Defendants' motion for summary judgment, Doc. 26, and to close the case, it is,

ORDERED, ADJUDGED AND DECREED: That for the reasons stated in the Court's Order dated February 9, 2015, Plaintiff's claims are dismissed without prejudice; accordingly, the case is closed.

Dated: New York, New York
February 10, 2015

RUBY J. KRAJICK

BY:

Clerk of Court

K. Marigo

Deputy Clerk